

TERMS OF USE

Last Updated December 8, 2019

The BH Digital Solutions Store e-Commerce Portal website (the "Portal") is operated by Baker Hughes ("BH"). Throughout the Portal, the terms "we," "us" and "our" refer to BH. BH offers this Portal, including all information, tools and services available from this Portal, to you, the user, conditioned upon your acceptance of all the terms, conditions, policies and notices stated here. Your use of this Portal constitutes your agreement to these Terms of Use.

The Portal is a tool that allows registered Channel Partners that have been granted a Single Sign On (SSO) and approved by BH for access to, among other things, check material availability and place orders for shipment of certain BH products. The Portal also allows registered customers that have been approved by BH for access to, among other things, check the status of certain orders and retrieve copies of certain order-related documentation.

You understand that this tool may permit access to parts and exclusive information which is not part of your appointment/authorization. You commit not to purchase any of these parts without BH's express written authorization.

Orders for any services or products, including software, placed through the Portal shall be subject to and governed by BH's separate terms and conditions of sale or such other terms and conditions as may be presented by BH from time to time in connection with any such order.

Your continued access to and use of the Portal is conditioned upon the following terms and conditions of use:

Portal Access Grant

You are granted access to the Portal solely for the purpose(s) as may be authorized by BH from time to time in its sole discretion.

Portal Use Restrictions

- Usage Limited To You. You are not permitted to make the Portal available to unregistered users.
- No Resale. You may not sublease, share, or resell the Portal services or provide access to the Portal to any other person or entity, without the prior written approval of BH.
- User Conduct - Security. You agree not to:
 - Disrupt or interfere with the security of, or otherwise abuse the Portal;
 - Disrupt or interfere with any other user's use of the Portal;
 - Upload, post, or otherwise transmit through or on the Portal any viruses or other harmful, disruptive or destructive files or information;
 - Use or attempt to use another's account, service or system without authorization from BH;
 - Use a false email address or other identifying information, impersonate any person or entity, create or use a false identity on the Portal, or otherwise mislead as to the origin of any content;
 - Attempt to obtain unauthorized access to any portions of the Portal that are not a part of the specific access granted to you;
 - Grant access to or use of any Portal features to any third party without BH's prior consent (evidenced by BH's issuance of valid user name and password);
 - Use the user name or password of any other person at any time; or
 - Disclose any user name and/or password issued to or created by you to any other person or party. You shall be responsible for all actions and communications undertaken or transmitted under your account and those of your employees and contractors.

No Interference With Portal Operations

- You may not maliciously or intentionally interfere with the proper operation of the Portal, including defeating identification procedures, obtaining access beyond that which you are authorized and impairing the availability, reliability, or quality of the Portal for other users.
- You shall adhere to system and security policies as published by BH, including restrictions on Portal availability and ordering, including regarding the items that you have/do not have authorization to order, regardless of your ability to access such items on the Portal, restrictions on certain features, and all other policies designed to protect and enhance the quality and reliability of the Portal and BH products.

Changes to These Terms of Use

BH may terminate, modify, change, suspend or discontinue any aspect of the Portal, including the availability of any features or content, at any time in its sole discretion without notice. BH may impose limits on certain features of the Portal, or terminate or restrict any user's access to part or all of the Portal, at any time in its sole discretion without notice. BH may also: (a) immediately remove, modify or otherwise change any user's Portal access for any or no reason, including any violation of these Terms of Use; (b) supplement or make changes to its user access or security procedures; and/or (c) change the type or location of the equipment, facilities or software used by BH in providing access.

Accuracy, Completeness And Timeliness Of Information On This Portal

BH is not responsible if information made available on this Portal is not accurate, complete or current. The material on this Portal is provided for general information only and should not be relied upon or used as the sole basis for making decisions without consulting primary, more accurate, more complete or more timely sources of information. Any reliance on the material on this Portal is at your own risk. This Portal may contain certain historical information. Historical information necessarily is not current and is provided for your reference only. We reserve the right to modify the contents of this Portal at any time, but we have no obligation to update any information on the Portal. You agree that it is your responsibility to monitor changes to the Portal.

Use of Materials on the Portal

All content on this Portal (including, without limitation, text, design, graphics, logos, icons, images, audio clips, downloads, interfaces, code and software, as well as the selection and arrangement thereof), is the exclusive property of and owned by BH, its licensors or its content providers and is protected by copyright, trademark and other applicable laws. You may access, copy, download and print the material contained on the Portal for your personal and non-commercial use, provided you do not modify or delete any copyright, trademark or other proprietary notice that appears on the material you access, copy, download or print; and further provided that access, copy, download and/or use of certain software and other materials contained on the Portal may be subject to and governed by additional or separate terms and conditions of sale or such other terms and conditions as may be presented by BH from time to time in connection with such items. Any other use of content on the Portal, including but not limited to the modification, distribution, transmission, performance, broadcast, publication, uploading, licensing, reverse engineering, transfer or sale of, or the creation of derivative works from, any material, information, software, products or services obtained from the Portal, or use of the Portal for purposes competitive to BH, is expressly prohibited. You agree to abide by all additional restrictions displayed on the Portal as it may be updated from time to time. BH reserves the right to refuse or cancel any person's registration for this Portal, remove any person from this Portal or prohibit any person from using this Portal for any reason whatsoever. BH, or its licensors or content providers, retain full and complete title to the material provided on the Portal, including all associated intellectual property rights, and provide this material to you under a license that is revocable at any time in BH's sole discretion. BH neither warrants nor represents that your use of materials on this Portal will not infringe rights of third parties not affiliated with BH.

You may not use contact information provided on the Portal for unauthorized purposes, including marketing. You may not use any hardware or software intended to damage or interfere with the proper working of the Portal or to surreptitiously intercept any system, data or personal information from the Portal. You agree not to interrupt or attempt to interrupt the operation of the Portal in any way. BH reserves the right, in its sole discretion, to limit or terminate your access to or use of the Portal at any time without notice. Termination of your access or use will not waive or affect any other right or relief to which BH may be entitled at law or in equity.

Materials You Submit

You acknowledge that you are responsible for any material you may submit via the Portal, including the legality, reliability, appropriateness, originality and copyright of any such material. You may not upload to, distribute or otherwise publish through the Portal any content that (i) is confidential, proprietary, false, fraudulent, libelous, defamatory, obscene, threatening, invasive of privacy or publicity rights, infringing on intellectual property rights, abusive, illegal or otherwise objectionable; (ii) may constitute or encourage a criminal offense, violate the rights of any party or otherwise give rise to liability or violate any law; or (iii) may contain software political campaigning, chain letters, mass mailings, or any form of "spam." You may not upload commercial content onto the Portal.

If you do submit material, and unless we indicate otherwise, you grant BH and its affiliates an unrestricted, nonexclusive, royalty-free, perpetual, irrevocable and fully sublicensable right to use, reproduce, modify, adapt, publish, translate, create derivative works from, distribute and display such material throughout the world in any media. You further agree that BH is free to use any ideas, concepts, and know-how that you or individuals acting on your behalf provide to BH. You grant BH and its affiliates the right to use the name you submit in connection with such material, if they so choose. All personal information provided via the Portal will be handled in accordance with the site's online Privacy Policy <https://www.bakerhughes.com/privacy>. You represent and warrant that you own or otherwise control all the rights to the content you post; that the content is accurate; that use of the content you supply does not violate any provision herein and will not cause injury to any person or entity; and that you will indemnify BH and its affiliates for all claims resulting from content you supply.

Conduct on the Portal

Some features that may be available on the Portal require registration. By registering at and in consideration of your use of the Portal you agree to provide true, accurate, current and complete information about yourself.

Some features on the Portal require use of a password. You are responsible for protecting your password. You agree that you will be responsible for any and all statements made, and acts or omissions that occur, through the use of your password. If you have any reason to believe or become aware of any loss, theft or unauthorized use of your password, notify BH immediately. BH may assume that any communications BH receives under your password have been made by you unless BH receives notice otherwise.

You or third parties acting on your behalf are not allowed to frame this site or use our proprietary marks as meta tags, without our written consent. These marks include, but are not limited to, Baker Hughes, BH, Bently Nevada, Druck, Nexus Controls, Panametrics, Reuter-Stokes, Waygate Technologies, and their associated Logos. You may not use frames or utilize framing techniques or technology to enclose any content included on the Portal without BH's express written consent. Further, you may not utilize any site content in any meta tags or any other "hidden text" techniques or technologies without BH's express written consent.

Links

This Portal may contain links to other Web sites, some of which are operated by BH or its affiliates and others of which are operated by third parties. These links are provided as a convenience to you and as an additional avenue of access to the information contained therein. We have not necessarily reviewed all the information on those other sites and are not responsible for the content of those or any other sites or any products or services that may be offered through those or any other sites. Inclusion of links to other sites should not be viewed as an endorsement of the content of linked sites. Different terms and conditions may apply to your use of any linked sites. BH is not responsible for any losses, damages or other liabilities incurred as a result of your use of any linked sites.

Infringement Notice

We respect the intellectual property rights of others and request that you do the same. You are hereby informed that BH has adopted and reasonably implemented a policy that provides for the termination in appropriate circumstances of subscribers and account holders of BH's system or network who are repeat copyright infringers. If you believe your copyright or the copyright of a person on whose behalf you are authorized to act has been infringed, you may notify our website support using the [Feedback feature](#)

Your notification must include substantially the following:

- Identification of the copyrighted work claimed to have been infringed, or, if multiple copyrighted works at a single online site are covered by a single notification, a representative list of such works at that site;
- Identification of the material that is claimed to be infringing or to be the subject of infringing activity and that is to be removed or access to which is to be disabled, and information reasonably sufficient to permit the service provider to locate the material;
- Information reasonably sufficient to permit the service provider to contact the complaining party, such as an address, telephone number, and, if available, an electronic mail address at which the complaining party may be contacted;
- A statement that the complaining party has a good faith belief that use of the material in the manner complained of is not authorized by the copyright owner, its agent, or the law; and
- A statement that the information in the notification is accurate, and under penalty of perjury, that the complaining party is authorized to act on behalf of the owner of an exclusive right that is allegedly infringed.
- When we contact you, we will need a physical or electronic signature of a person authorized to act on behalf of the owner of an exclusive right that is allegedly infringed.

BH is under no obligation to post, forward, transmit, distribute or otherwise provide any material available on this Portal, including material you provide to us, and so we have an absolute right to remove any material from this Portal in our sole discretion at any time.

Exclusion of Warranties

YOUR USE OF THIS PORTAL IS AT YOUR SOLE RISK. THE PORTAL IS PROVIDED ON AN "AS IS" AND "AS AVAILABLE" BASIS. BH RESERVES THE RIGHT TO RESTRICT OR TERMINATE YOUR ACCESS TO THE PORTAL OR ANY FEATURE OR PART THEREOF AT ANY TIME. BH EXPRESSLY DISCLAIMS ALL WARRANTIES OF ANY KIND, WHETHER EXPRESS OR IMPLIED,

INCLUDING BUT NOT LIMITED TO THE IMPLIED WARRANTIES OF MERCHANTABILITY AND FITNESS FOR A PARTICULAR PURPOSE AND ANY WARRANTIES THAT MATERIALS ON THE PORTAL ARE NON-INFRINGEMENT, AS WELL AS WARRANTIES IMPLIED FROM A COURSE OF PERFORMANCE OR COURSE OF DEALING; THAT ACCESS TO THE PORTAL WILL BE UNINTERRUPTED OR ERROR-FREE; THAT THE PORTAL WILL BE SECURE; THAT THE PORTAL OR THE SERVER THAT MAKES THE PORTAL AVAILABLE WILL BE VIRUS-FREE; OR THAT INFORMATION ON THE PORTAL WILL BE COMPLETE, ACCURATE OR TIMELY. IF YOU DOWNLOAD ANY MATERIALS FROM THIS PORTAL, YOU DO SO AT YOUR OWN DISCRETION AND RISK. YOU WILL BE SOLELY RESPONSIBLE FOR ANY DAMAGE TO YOUR COMPUTER SYSTEM OR LOSS OF DATA THAT RESULTS FROM THE DOWNLOAD OF ANY SUCH MATERIALS. NO ADVICE OR INFORMATION, WHETHER ORAL OR WRITTEN, OBTAINED BY YOU FROM BH OR THROUGH OR FROM THE PORTAL SHALL CREATE ANY WARRANTY OF ANY KIND. BH DOES NOT MAKE ANY WARRANTIES OR REPRESENTATIONS REGARDING THE USE OF THE MATERIALS ON THIS PORTAL IN TERMS OF THEIR COMPLETENESS, CORRECTNESS, ACCURACY, ADEQUACY, USEFULNESS, TIMELINESS, RELIABILITY OR OTHERWISE. BH IS NOT RESPONSIBLE FOR ANY MISDELIVERIES THAT RESULT FROM USE OF THE PORTAL. BH DOES NOT MAKE ANY WARRANTY THAT THE PORTAL OR ITS CONTENT WILL MEET YOUR REQUIREMENTS.

IN CERTAIN JURISDICTIONS, THE LAW MAY NOT PERMIT THE DISCLAIMER OF WARRANTIES, SO THE ABOVE DISCLAIMER MAY NOT APPLY TO YOU.

Limitation of Liability; Exclusion of Consequential Damages

YOU ACKNOWLEDGE AND AGREE THAT YOU ASSUME FULL RESPONSIBILITY FOR YOUR USE OF THIS PORTAL. YOU ACKNOWLEDGE AND AGREE THAT ANY INFORMATION YOU SEND OR RECEIVE DURING YOUR USE OF THIS PORTAL MAY NOT BE SECURE AND MAY BE INTERCEPTED BY UNAUTHORIZED PARTIES. YOU ACKNOWLEDGE AND AGREE THAT YOUR USE OF THIS PORTAL IS AT YOUR OWN RISK AND THAT THIS PORTAL IS MADE AVAILABLE TO YOU AT NO CHARGE. RECOGNIZING SUCH, YOU ACKNOWLEDGE AND AGREE THAT, TO THE FULLEST EXTENT PERMITTED BY APPLICABLE LAW, NEITHER BHGE NOR ITS AFFILIATES, SUPPLIERS OR THIRD PARTY CONTENT PROVIDERS WILL BE LIABLE FOR ANY DIRECT, INDIRECT, PUNITIVE, EXEMPLARY, INCIDENTAL, SPECIAL, CONSEQUENTIAL OR OTHER DAMAGES ARISING OUT OF OR IN ANY WAY RELATED TO THE PORTAL, OR ANY OTHER SITE YOU ACCESS THROUGH A LINK FROM THIS PORTAL OR FROM ANY ACTIONS WE TAKE OR FAIL TO TAKE AS A RESULT OF COMMUNICATIONS YOU SEND TO US, OR THE DELAY OR INABILITY TO USE THE PORTAL, OR FOR ANY INFORMATION, PRODUCTS OR SERVICES ADVERTISED IN OR OBTAINED THROUGH THE PORTAL, BH'S REMOVAL OR DELETION OF ANY MATERIALS SUBMITTED OR POSTED ON THIS PORTAL, OR OTHERWISE ARISING OUT OF THE USE OF THE PORTAL, WHETHER BASED ON CONTRACT, TORT, STRICT LIABILITY OR OTHERWISE, EVEN IF BH, ITS AFFILIATES OR ANY OF ITS SUPPLIERS HAS BEEN ADVISED OF THE POSSIBILITY OF DAMAGES. THIS DISCLAIMER APPLIES, WITHOUT LIMITATION, TO ANY DAMAGES OR INJURY ARISING FROM ANY FAILURE OF PERFORMANCE, ERROR, OMISSION, INTERRUPTION, DELETION, DEFECTS, DELAY IN OPERATION OR TRANSMISSION, COMPUTER VIRUSES, FILE CORRUPTION, COMMUNICATION-LINE FAILURE, NETWORK OR SYSTEM OUTAGE, YOUR LOSS OF PROFITS, OR THEFT, DESTRUCTION, UNAUTHORIZED ACCESS TO, ALTERATION OF, LOSS OR USE OF ANY RECORD OR DATA, AND ANY OTHER TANGIBLE OR INTANGIBLE LOSS. YOU SPECIFICALLY ACKNOWLEDGE AND AGREE THAT NEITHER BH NOR ITS AFFILIATES OR SUPPLIERS SHALL BE LIABLE FOR ANY DEFAMATORY, OFFENSIVE OR ILLEGAL CONDUCT OF ANY USER OF THE PORTAL. YOUR SOLE AND EXCLUSIVE REMEDY FOR ANY OF THE ABOVE CLAIMS OR ANY DISPUTE WITH BH IS TO DISCONTINUE YOUR USE OF THE PORTAL. YOU AND BHGE AGREE THAT ANY CAUSE OF ACTION ARISING OUT OF OR RELATED TO THE PORTAL MUST COMMENCE WITHIN ONE (1) YEAR AFTER THE CAUSE OF ACTION ACCRUES OR THE CAUSE OF ACTION IS PERMANENTLY BARRED. BECAUSE SOME JURISDICTIONS DO NOT ALLOW LIMITATIONS ON HOW LONG AN IMPLIED WARRANTY LASTS, OR THE EXCLUSION OR LIMITATION OF LIABILITY FOR CONSEQUENTIAL OR INCIDENTAL DAMAGES, ALL OR A PORTION OF THE ABOVE LIMITATION MAY NOT APPLY TO YOU.

Indemnification

You agree to indemnify, defend and hold harmless BH and its affiliates and their officers, directors, employees, contractors, agents, licensors, service providers, subcontractors and suppliers from and against any and all losses, liabilities, expenses, damages and costs, including reasonable attorneys' fees and court costs, arising or resulting from your use of the Portal and any violation of these Terms of Use. If you cause a technical disruption of the Portal or the systems transmitting the Portal to you or others, you agree to be responsible for any and all losses, liabilities, expenses, damages and costs, including reasonable attorneys' fees and court costs, arising or resulting from that disruption. BH reserves the right, at its own expense, to assume exclusive defense and control of any matter otherwise subject to indemnification by you and, in such case, you agree to cooperate with BH in the defense of such matter.

Jurisdiction and Applicable Law

The laws of the State of New York and the controlling laws of the United States govern these Terms of Use and your use of the Portal, without giving effect to any laws, rules or provisions that would cause the application of the laws of any other jurisdictions. You irrevocably consent to the jurisdiction of the courts located in the County of New York for any action arising out of or relating to these

Terms of Use. We recognize that it is possible for you to obtain access to this Portal from any jurisdiction in the world, but we have no practical ability to prevent such access. This Portal has been designed to comply with the laws of the State of New York and of the United States. If any material on this Portal, or your use of the Portal, is contrary to the laws of the place where you are when you access it, the Portal is not intended for you, and we ask you not to use the Portal. You are responsible for informing yourself of the laws of your jurisdiction and complying with them.

Changes to These Terms of Use

BH reserves the right, at its sole discretion, to change, modify, add or remove any portion of these Terms of Use, in whole or in part, at any time, by posting revised terms on the Portal. It is your responsibility to check periodically for any changes we make to the Terms of Use. Your continued use of the Portal after any changes to the Terms of Use or other policies means you accept the changes.

In the event we make material changes to the Terms of Use, notice of the changes will be posted on the homepage of this Portal and the revised terms will take effect thirty days after their publication on the Portal.

Entire Agreement and Admissibility

This agreement and any policies or operating rules posted on this Portal constitute the entire agreement and understanding between you and BH with respect to the subject matter thereof and supersede all prior or contemporaneous communications and proposals, whether oral or written, between the parties with respect to such subject matter. A printed version of these Terms of Use shall be admissible in judicial or administrative proceedings based on or relating to use of the Portal to the same extent and subject to the same conditions as other business documents and records originally generated and maintained in printed form.

Severability

If any provision of this agreement is unlawful, void or unenforceable, the remaining provisions of the agreement will remain in place.